

[20 & 21 GEO. 5.] *Stockton-on-Tees* [Ch. clxxii.]  
*Corporation (General Powers) Act, 1930.*



## CHAPTER clxxii.

An Act to empower the mayor aldermen and burgesses of the borough of Stockton-on-Tees to discontinue tramways and to authorise the mayor aldermen and burgesses of the borough of Middlesbrough also to discontinue tramways and to enable the two Corporations to run omnibuses between Norton in the borough of Stockton-on-Tees and North Ormesby Road in the borough of Middlesbrough to confer further powers on the Stockton-on-Tees Corporation with regard to streets and buildings and the health and good government of their borough and for other purposes. [1st August 1930.]

WHEREAS the borough of Stockton-on-Tees (in this Act called "the borough") is under the municipal and local government of the mayor aldermen and burgesses of the borough (in this Act referred to as "the Corporation"):

And whereas it is expedient to enact the provisions in this Act contained with regard to the Corporation Quay:

And whereas the Corporation the mayor aldermen and burgesses of the borough of Thornaby-on-Tees (hereinafter called "the Thornaby Corporation") and the mayor aldermen and burgesses of the borough of Middlesbrough (hereinafter called "the Middlesbrough Corporation") own and work tramways which form a



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A.D. 1930.      through route between Norton in the borough and North Ormesby Road in the borough of Middlesbrough :

And whereas the revenue from the said tramways is decreasing and it is expedient to empower the Corporation to abandon and discontinue their tramways and to purchase and discontinue the tramways of the Thornaby Corporation forming part of the said through route and to enable them to run omnibuses along the said through route and also to empower the Middlesbrough Corporation if and when they think fit also to abandon and discontinue their tramways which form part of the said through route and to run omnibuses along the said through route in lieu of such tramway services :

And whereas it is expedient to empower the Corporation to run omnibuses along the further routes described in this Act :

And whereas it is expedient that the powers of the Corporation with regard to the health and good government of the borough should be extended as by this Act provided :

And whereas it is expedient that the other provisions contained in this Act should be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows :—

|                                                                                                          |          |
|----------------------------------------------------------------------------------------------------------|----------|
| (a) For and in connection with the purchase of lands                                                     | £<br>500 |
| (b) For and in connection with the provision of omnibuses                                                | 67,558   |
| (c) For and in connection with the removal of tramways and the reconstruction and reinstatement of roads | 25,000   |

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :



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And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Durham and are hereinafter respectively referred to as the deposited plans sections and book of reference : A.D. 1930.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

1. This Act may be cited as the *Stockton-on-Tees Corporation (General Powers) Act 1930.* Short title.

2. This Act is divided into Parts as follows :— Division of Act into Parts.

|                                              |  |
|----------------------------------------------|--|
| Part I.—Preliminary.                         |  |
| Part II.—Lands.                              |  |
| Part III.—Corporation Quay.                  |  |
| Part IV.—Omnibuses and tramways.             |  |
| Part V.—Streets buildings sewers and drains. |  |
| Part VI.—Financial provisions.               |  |
| Part VII.—Miscellaneous provisions.          |  |

3. The Lands Clauses Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act with the following exception and modification— Incorporation of Lands Clauses Acts.

- (a) Section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) is not incorporated with this Act;
- (b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the corporate seal of the Corporation and shall be sufficient without the addition of the sureties mentioned in that section.



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Interpre-  
tation.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts 1875 to 1925 have the same respective meanings unless there be something in the subject or context repugnant to such construction. And in this Act unless the subject or context otherwise requires—

“ The borough ” means the borough of Stockton-on-Tees ;

“ The Corporation ” means the mayor aldermen and burgesses of the borough ;

“ The council ” means the council of the borough ;

“ The town clerk ” “ the surveyor ” “ the medical officer ” and “ the sanitary inspector ” mean respectively the town clerk the surveyor the medical officer of health and any sanitary inspector of the borough and respectively include any person duly authorised to discharge temporarily the duties of those offices ;

“ The general rate fund ” and “ the general rate ” mean respectively the general rate fund and the general rate of the borough ;

“ The Thornaby Corporation ” means the mayor aldermen and burgesses of the borough of Thornaby-on-Tees ;

“ The Middlesbrough Corporation ” means the mayor aldermen and burgesses of the borough of Middlesbrough ;

“ The three Corporations ” means the Corporation the Thornaby Corporation and the Middlesbrough Corporation ;

“ The West Hartlepool Corporation ” means the mayor aldermen and burgesses of the borough of West Hartlepool ;

“ The Durham County Council ” means the county council of the administrative county of Durham ;

“ The North Riding County Council ” means the county council of the administrative county of the north riding of Yorkshire ;

“ Omnibus ” means any stage carriage moved by animal power or by mechanical power (including in that expression steam electrical and every



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other motive power not being animal power) A.D. 1930.  
obtained from some internal source; —

“Daily penalty” means a penalty for every day on which an offence is continued after conviction thereof;

“The Lands Clauses Acts” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 and by this Act;

“The tribunal” means the arbitrator or other authority to whom any question of disputed purchase money or compensation under this Act is referred;

“Telegraphic line” has the same meaning as in the Telegraph Act 1878;

“The Act of 1889” and “the Act of 1919” mean respectively the Stockton-on-Tees Extension and Improvement Act 1889 and the Stockton-on-Tees Corporation Act 1919;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other



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local authority as defined by section 34 (Definitions) of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;

“Revenues of the Corporation” includes the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and the rates or contributions leviable by or on the order or precept of the Corporation.

PART II.

LANDS.

Power to  
take lands.

5. Subject to the provisions of this Act the Corporation may enter on take and use the following lands delineated on the deposited plans and described in the deposited book of reference for the purpose of providing public conveniences :—

All that piece of land situate in Smith Street in the borough measuring from north to south thirty-five feet ten inches or thereabouts and from east to west thirty-seven feet six inches or thereabouts and containing in the whole one hundred and forty-nine square yards or thereabouts bounded on the south by Smith Street on the north by Union Square on the east by land and premises known as the North Eastern Hotel and a public convenience and on the west by land and premises belonging to Mrs. Catherine Simmonds together with the four messuages or dwelling-houses erected thereon or on some part thereof and known as Nos. 13 13½ 14 and 14½ Smith Street.

Period for  
compulsory  
purchase  
of lands.

6. The powers of the Corporation for the compulsory purchase of lands under this Act shall cease after the expiration of three years from the first day of October nineteen hundred and thirty.

Correction  
of errors in  
deposited  
plans and

7. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans



or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county of Durham for the correction thereof and if it appear to the justices that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace of the said county and a duplicate thereof shall also be deposited with the town clerk of the borough and such certificate and duplicate respectively shall be kept by such clerk of the peace and town clerk respectively with the other documents to which the same relate and thereupon the deposited plans or book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with such certificate.

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book of  
reference.

8. In determining any question of disputed purchase money or compensation payable in respect of lands taken in pursuance of this Act the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or erected or for or in respect of any interest in the lands created after the twentieth day of November nineteen hundred and twenty-nine if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made erected or created with a view to obtaining or increasing compensation under this Act.

Provisions  
as to new  
buildings  
and in-  
terests.

9. In estimating the amount of compensation or purchase money to be paid by the Corporation in respect of the acquisition under this Act of any part of the lands of any person the enhancement in value of the adjoining lands of such person not so acquired or of any other lands of such person which are continuous with such adjoining lands arising out of the construction of any new street or the widening or improvement of any existing street or arising through such adjoining

Benefits to  
be set off  
against  
compen-  
sation.



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Purchase of additional lands by agreement.

**10.** The Corporation in addition to any other lands acquired by them in pursuance of this Act may by agreement purchase take on lease acquire and hold further lands for the purposes of this Act but the quantity of lands held by the Corporation in pursuance of this section shall not at any time exceed five acres Provided that the Corporation shall not create or permit the creation or continuance of any nuisance on any such lands.

Persons under disability may grant easements &c.

**11.** Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to enter upon property for survey and valuation.

**12.** The Corporation and their surveyors officers and workmen and any person duly authorised in writing under the hand of the town clerk may at all reasonable times upon giving in the first instance twenty-four hours' and subsequently twelve hours' previous notice in writing enter upon and into the lands and buildings by this Act authorised to be taken and used or any of them for the purpose of surveying and valuing the said lands and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands or buildings.

Power to reinstate owners of property.

**13.** The Corporation may enter into and carry into effect agreements with the owners of or other persons interested in any land which may be acquired under the provisions of this Act with respect to the reinstatement of such owners or other persons and



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with respect to the exchange of lands for that purpose      A.D. 1930.  
and the Corporation may pay or receive money for  
equality of exchange.      —

14.—(1) Notwithstanding anything in the Lands      Retention  
Clauses Acts or in any other Act or Acts to the contrary      sale and  
the Corporation may retain hold and use for such time      disposal  
as they may think fit or may sell lease exchange or      of land.  
otherwise dispose of in such manner and for such con-  
sideration and purpose and on such terms and con-  
ditions as they may think fit and either in consideration  
of the execution of works or of the payment of a gross  
sum or of an annual rent or of any payment in any  
other form any lands or any interest therein acquired by  
them under this Act and may sell exchange or dispose  
of any rents reserved on the sale lease exchange or  
disposition of such lands or interests therein and may  
make do and execute any deed act or thing proper for  
effectuating any such sale lease exchange or other  
disposition and on any exchange may give or take  
any money for equality of exchange.

(2) The Corporation shall not (unless the Minister  
of Health otherwise direct) sell lease exchange or other-  
wise dispose of any such lands or interests therein  
except at the best price or on the best terms which  
can be obtained for the same but a purchaser or lessee  
shall not be concerned to inquire whether the direction  
of the said Minister is necessary or has been obtained.

(3) Nothing in this section contained shall release  
the Corporation or any person purchasing or acquiring  
any lands from them under this section from any rents  
covenants restrictions reservations terms or conditions  
made payable by or contained in any conveyance lease  
or other deed or instrument by which any such lands  
were or may hereafter be conveyed or leased to or  
otherwise acquired by the Corporation or any persons  
from or through whom the Corporation may have  
derived or may hereafter derive title to the same but  
all such rents covenants restrictions reservations terms  
and conditions shall remain and be of as full force and  
effect and may be recovered exercised enjoyed and  
enforced in like manner and to the same extent as if  
this Act had not been passed.



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Application  
of capital  
moneys on  
disposal  
of lands.

**15.** So long as any lands remain to be acquired by the Corporation under the authority of this Act the Corporation may so far as they consider necessary apply any capital moneys received by them on the re-sale or exchange of or by leasing any lands acquired under the authority of this Act in the purchase of lands so remaining to be acquired but as to capital moneys so received and not so applied the Corporation shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment provided by this Act except to such extent and upon such terms as may be approved by the Minister of Health :

Provided that—

- (a) the amount to be applied in the purchase of lands under this section shall not exceed the amount for the time being unexhausted of the borrowing powers conferred by this Act for the purpose of such purchase;
- (b) the borrowing powers conferred by this Act for the purpose of such purchase shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

Land laid  
into streets  
to form  
part thereof.

**16.** All lands acquired by the Corporation under this Act and laid into or appropriated as part of any street shall form part of that street and shall be maintained and repaired in all respects as the rest of that street is for the time being by law maintained and repaired.

As to  
private  
rights of  
way over  
lands taken  
compul-  
sorily.

**17.** All private rights of way over lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished. Provided that the Corporation shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by law with reference to the taking of lands otherwise than by agreement.



PART III.

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CORPORATION QUAY.

18.—(1) The Corporation may erect and maintain fences and gates round the Corporation Quay in or about the line shown on the deposited plans and may stop up the portions of public highway or lands over which a public right of way may have been acquired included within that line. Power to close entrance to Corporation Quay.

(2) The Corporation shall erect gates at the following points :—

- (a) The eastern end of Silver Street;
- (b) The south end of Calvert's Lane;
- (c) The eastern end of Finkle Street;
- (d) A point adjacent to the river steps near the south end of the Corporation Quay;

but may keep the said gates closed whenever and so long as they think fit and may prevent access to the Corporation Quay by persons who are not (1) engaged in or in business connected with the Corporation Quay or (2) engaged in or in business connected with any premises of the Corporation on the Corporation Quay or (3) employed on or engaged in or bona fide seeking business in connection with any vessel at the Corporation Quay or (4) members of the Tees Conservancy Commission or their officers or servants engaged in the performance of their statutory duties.

PART IV.

OMNIBUSES AND TRAMWAYS.

19.—(1) In addition to the powers conferred on the Corporation by the Act of 1919 subject to the provisions of this Act the Corporation may provide and maintain (but shall not manufacture) and may run omnibuses along the following routes :— Power to provide and run omnibuses.

Route A In the borough and the boroughs of Thornaby-on-Tees and Middlesbrough from the tramway terminus at Norton in the borough along High Street Norton Norton Road High Street Stockton Bridge Road the Victoria Bridge Mandale Road Middlesbrough Road



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Stockton Road Newport Road Corporation Road and North Ormesby Road to the termination of the tramway in North Ormesby Road existing at the passing of the Middlesbrough Corporation Act 1919 and referred to in section 63 of that Act;

Route No. 1 In the urban district of Billingham commencing at the borough boundary in a new road (numbered 4 on map No. 4 referred to in and forming part of the North Tees Joint Town Planning Scheme which is intended to be constructed from Mill Lane Norton to Station Road Billingham at its junction with Central Avenue) thence along such new road and along Central Avenue to its junction with Belasis Lane Billingham;

Route No. 2 In the urban district of Billingham commencing in Station Road at its junction with Central Avenue thence along Station Road Wynyard Terrace The Green and Mill Lane to the point where the road numbered 37 on the map No. 4 referred to in and forming part of the said town planning scheme meets Mill Lane thence along the said road numbered 37 to the boundary of the borough;

Route No. 3 In the urban district of Billingham commencing in Station Road at its junction with West Road thence along West Road to its junction with Billingham Road;

Route No. 4 In the borough of Middlesbrough commencing at the boundary of the borough on the intended bridge across the river Tees authorised by the Tees (Newport) Bridge Act 1930 across that bridge and along the intended approach road to the said bridge which it is proposed shall commence at a point on the southern (or eastern) bank of the said river coinciding with high-water mark of ordinary spring tides 15 yards or thereabouts north of the centre of the southernmost landing stage of Newport Ferry and terminating by a junction with Newport Road 40 yards or thereabouts south-west of the junction of Newport Road with Mills Street;



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Route No. 5 In the urban district of Billingham the rural districts of Stockton and Hartlepool and the borough of West Hartlepool commencing in the urban district of Billingham at the junction of the Tees Road and Port Clarence Road thence along the Tees Road to and terminating in Church Street Seaton Carew in the borough of West Hartlepool at a point opposite the Seaton hotel in Church Street; A.D. 1930.

Route No. 6 In the urban district of Billingham commencing at the borough boundary in Billingham Road thence along Billingham Road to its junction with Belasis Lane along Belasis Lane over Belasis railway crossing along Belasis Avenue to its junction with Leven Street along Leven Street Robson Street Hope Street to its junction with Port Clarence Road thence along Port Clarence Road and terminating at the Transporter Bridge Port Clarence;

Route No. 7 In the urban district of Billingham commencing at the junction of New Road with Billingham Road along New Road to its junction with Haverton Hill Road thence along Haverton Hill Road Chilton's Lane and Port Clarence Road and terminating by a junction with Route No. 6 hereinbefore described;

Route No. 8 In the urban district of Billingham commencing at the junction of Belasis Lane and Marlborough Road along Marlborough Road to its junction with St. Vincent Street thence along St. Vincent Street and terminating at its junction with Leven Street;

Route No. 9 In the urban district of Billingham commencing in Haverton Hill Road at the boundary of the borough thence along Haverton Hill Road and terminating by a junction with Route No. 7 hereinbefore described;

Route No. 10 Partly in the rural district of Stockton in the county of Durham and partly in the rural district of Stokesley in the north riding of the county of York commencing in Yarm Road at the boundary of the borough near Potato Hall thence along Yarm Road through



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Eaglescliffe Junction and Highfield to and terminating in Yarm High Street at Yarm Town Hall;

Route No. 11 In the borough of Thornaby-on-Tees the Middlesbrough rural district in the north riding of the county of York and the borough of Middlesbrough commencing at the junction of Mandale Road and Acklam Road thence along Acklam Road and Newport Lane to the junction of Cambridge Road thence along Cambridge Road Orchard Road The Avenue and Linthorpe Road to Borough Road West thence along Borough Road West to Albert Road thence along Albert Road to and terminating in Exchange Place at its junction with Zetland Road;

Route No. 12 Wholly in the borough of Middlesbrough commencing in Exchange Place at its junction with Zetland Road proceeding round the Royal Exchange into Wilson Street and terminating at the junction of Wilson Street and Exchange Place;

Route No. 13 Wholly in the borough of Thornaby-on-Tees from the junction of Thornaby Road and Lanehouse Road along Lanehouse Road to its junction with Acklam Road;

Route No. 14 In the borough of Thornaby-on-Tees the rural district of Middlesbrough and the rural district of Stokesley in the north riding of the county of York commencing in the borough of Thornaby-on-Tees at the east end of the Victoria Bridge thence along Thornaby Road and Leven Road to High Leven along Leven Bank Yarm Bank Leven Road and Spital Lane to and terminating in High Street Yarm at the Yarm Town Hall.

(2) Should the roads numbered 4 and 37 on the map No. 4 referred to in the descriptions of Route No. 1 and Route No. 2 by this Act authorised or either of those roads be altered from the positions shown on the said map before the town planning scheme referred to in the said descriptions is finally approved by the Minister of Health the parts of the said Routes Nos. 1 and 2 to be



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situate on those roads respectively shall be altered to follow the lines of the roads as altered. A.D. 1930.

(3) The Corporation shall not run omnibuses on Routes Nos. 1 2 and 3 by this Act authorised except with the consent of the urban district council of Billingham Provided that any such consent shall not be unreasonably withheld and any difference as to whether or not such consent is unreasonably withheld shall be determined by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers.

(4) The Corporation shall not run omnibuses on the part of Route No. 11 or on Route No. 13 by this Act authorised in the borough of Thornaby-on-Tees except with the consent of the Thornaby Corporation nor on the part of Route No. 11 or Route No. 12 by this Act authorised in the borough of Middlesbrough except with the consent of the Middlesbrough Corporation nor on Route No. 5 or any part thereof by this Act authorised except in accordance with the terms and conditions set out in the section of this Act of which the marginal note is "Special provisions with regard to Route No. 5."

(5) The powers conferred on the Corporation by the Act of 1919 with respect to the provision and maintenance of omnibuses the erection of buildings the provision of plant appliances and conveniences and the licensing of drivers and conductors shall apply to the provision maintenance and running of omnibuses under the powers of this section.

(6) The Corporation may demand and take for every passenger carried upon the omnibuses which the Corporation may provide maintain and run under the Act of 1919 or this Act any rates or charges not exceeding one penny per mile and in computing the said rates and charges a fraction of a mile shall be deemed to be a mile but the Corporation may charge for any less distance than two miles and not being less than half a mile a sum not exceeding twopence.

(7) The Corporation may demand and take in respect of parcels carried upon the omnibuses which the Corporation may provide maintain and run under the Act of 1919 or this Act including every expense incidental to the conveyance any rates or charges not exceeding



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(8) The provisions of sections 24 26 27 and 29 of the Act of 1919 relating to the rates and charges which the Corporation may demand and take in respect of their tramways shall apply to the omnibuses which the Corporation may provide maintain and run under the Act of 1919 and this Act as if they were tramcars run on such tramways.

(9) Subsection (2) of section 36 (Power to provide and run omnibuses) of the Act of 1919 is hereby repealed and subsection (5) of that section shall on the passing in the present or the next session of Parliament of any general Act relating to road traffic and containing provisions as to the licensing of drivers and conductors so far as the omnibuses of the Corporation are vehicles to which such provisions apply cease to have effect on the coming into force of such provisions.

Special provisions with regard to Route No. 5.

**20.** The following provisions shall apply and have effect in relation to the running of omnibuses by the Corporation over Route No. 5 by this Act authorised (in this section referred to as "Route No. 5") (that is to say) :—

- (1) The West Hartlepool Corporation on receipt of notice in writing from the Corporation that they desire to run omnibuses along any route between the town hall Stockton-on-Tees and the junction of Church Street and Lynn Street in the borough of West Hartlepool or such other point in the said borough as may be agreed between the West Hartlepool Corporation and the Corporation via Route No. 5 and whether running to the Transporter Bridge at Port Clarence or not shall upon the terms and conditions of this section consent to the Corporation running such omnibuses along Route No. 5 and between the southern boundary of the borough of West Hartlepool and the said junction of Church Street and Lynn Street or such other point in the said borough as may be agreed as aforesaid :



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- (2) If and so soon as the West Hartlepool Corporation shall obtain any consent or consents (other than the consent of the Corporation which is provided for under this section) necessary to enable them under their existing statutory powers to run omnibuses along the Tees Road from Greatham Creek southwards and through the urban district of Billingham to the borough of Stockton-on-Tees or such other authority as may be necessary for that purpose (which consent or consents the West Hartlepool Corporation shall use their best endeavours to obtain) and shall give notice in writing to the Corporation that they desire to run omnibuses from the said junction of Church Street and Lynn Street (or such other point in the borough of West Hartlepool as may be agreed upon between the Corporation and the West Hartlepool Corporation as aforesaid) via the Tees Road and either via Billingham and Haverton Hill or via Portrack Lane to the town hall Stockton-on-Tees and whether running to the Transporter Bridge at Port Clarence or not the Corporation shall upon the terms and conditions of this section consent to the West Hartlepool Corporation running such omnibuses from the boundary of the borough of Stockton-on-Tees in the Haverton Hill Road or in Portrack Lane as the case may be to the town hall Stockton-on-Tees : A.D. 1930.  
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- (3) The Corporation shall not under the provisions of this Act run any omnibuses or service of omnibuses on Route No. 5 or any part thereof except as part of a joint service with the West Hartlepool Corporation between the Town Hall Stockton-on-Tees and the said junction of Church Street and Lynn Street or such other point within the borough of West Hartlepool as may be agreed as aforesaid :
- (4) The frequency of the said joint omnibus services provided by the Corporation and the West Hartlepool Corporation in accordance with the terms and conditions of this section and the division of the receipts therefrom between the



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said two Corporations shall in default of agreement between them be referred to and determined by an arbitrator to be agreed upon by the said Corporations or failing agreement to be appointed on the application of either of the said Corporations after notice in writing to the other of them by the Minister of Transport :

- (5) Subject to the terms and conditions of this section being complied with by the Corporation the West Hartlepool Corporation shall not object to the entering into of any lawful agreement or arrangement between the Corporation and the Middlesbrough Corporation under which the Corporation may share with the Middlesbrough Corporation the interest of the Corporation in the said joint services.

Further  
provisions  
relating to  
omnibuses.

21.—(1) The provisions of section 51 (Penalty on passengers practising frauds on the promoters) and section 56 (Recovery of tolls penalties &c.) of the Tramways Act 1870 shall apply to and in relation to the omnibuses of the Corporation as if they were carriages used on tramways.

(2) The Corporation may make byelaws for regulating the travelling in or upon their omnibuses and for the prevention of nuisances in or upon the same or in or against any premises held by the Corporation in connection therewith.

(3) Subsection (3) of section 36 (Power to provide and run omnibuses) of the Act of 1919 is hereby repealed.

(4) Subsections (1) and (2) of this section shall so far as they relate to travelling in or upon the omnibuses of the Corporation and to the prevention of nuisances in or upon the same cease to have effect upon the coming into force of any general regulations as to the conduct of passengers in vehicles made by the Minister of Transport under the provisions of any general Act relating to road traffic passed during the present or the next session of Parliament in so far as such regulations apply to the omnibuses of the Corporation.

For protec-  
tion of  
Postmaster-  
General.

22.—(1) Every omnibus moved by electrical power shall be so equipped and worked as to prevent any interference with telegraphic communication by means of any telegraphic line of the Postmaster-General.



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(2) The Corporation shall perform in respect of the omnibuses of the Corporation such services with regard to the conveyance of mails as are prescribed by the Conveyance of Mails Act 1893 in the case of a tramway to which that Act applies. A.D. 1930.  
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**23.**—(1) The powers of running omnibuses under the provisions of this Act on any road or part of a road outside the borough (other than a road or part of a road forming part of Route A mentioned in the section of this Act the marginal note whereof is “Power to provide and run omnibuses”) may at the expiration of ten years from the passing of this Act in the case of roads forming part of the routes authorised by this Act on which at the passing of this Act the Corporation are running omnibuses with the consent of the local and road authorities and at the expiration of ten years from the date on which such running commences in the case of roads forming part of the other routes authorised by this Act and in each case at the expiration of any subsequent period of ten years be determined by the Minister of Transport on the application of the local authority of the borough or district in which such road or part of a road is situate upon such terms as the said Minister may determine. As to cesser of powers.

(2) Before issuing an order to determine the said powers the Minister of Transport shall hold a local inquiry at which opportunity shall be afforded to any person interested to object to the continuance or cesser of such powers.

**24.** If the Corporation do not within three years from the passing of this Act (or in the case of Routes Nos. 1 and 2 authorised by this Act within three years after the completion respectively of the roads numbered 4 and 37 on the map No. 4 referred to in the descriptions of those routes) provide a service of omnibuses on any of the omnibus routes authorised by this Act other than Route A or having provided shall discontinue any such service the Minister of Transport may on the application of any local authority within whose borough or district the route or any part of the route is situate and after considering any representation which may be made on behalf of the Corporation by order declare that unless a service of omnibuses be provided within such Provision in event of certain powers not being exercised within prescribed time.



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A.D. 1930. — period as the said Minister may by such order prescribe the powers of the Corporation under this Act in respect of the provision and running of omnibuses on such route or part of such route shall determine and if within the prescribed period such service be not provided as from the expiration of such period the powers of the Corporation under this Act in relation to the provision and running of omnibuses on such route or part of such route shall cease. Provided that this section shall not apply or have effect in the event of the failure of the Corporation to provide a service of omnibuses on any route being due to strikes unforeseen accident or circumstances beyond the control of the Corporation.

As to byelaws &c. under this Part of this Act.

**25.** Any byelaws and regulations made by the Corporation under the provisions contained in this Part of this Act shall be made subject and according to the provisions of the Tramways Act 1870 with respect to the making of byelaws.

Omnibuses to form part of tramway undertaking.

**26.** Subject to the provisions of this Act the omnibus undertaking authorised by this Act shall be deemed to form part of the tramway undertaking of the Corporation. Provided that in the accounts of the Corporation relative to their tramway undertaking the receipts and expenditure upon and in connection with omnibuses shall (so far as may be reasonably practicable) be distinguished from the receipts and expenditure upon or in connection with the remainder of such undertaking and in such accounts capital shall be distinguished from revenue.

Accounts to be furnished to Minister of Transport.

**27.** The Corporation shall in every year within three months after the close of their financial year or such longer period as the Minister of Transport may allow furnish to the Minister of Transport a copy of the annual accounts of their tramway undertaking.

As to abandonment of tramways of Corporation.

**28.—(1)** Subject to the provisions of the section of this Act of which the marginal note is “Provision restrictive of abandonment of tramways of three Corporations upon Route A and of running of omnibuses upon that route” so soon as the Corporation shall have commenced to run a service of omnibuses along High Street Norton Norton Road High Street Stockton Bridge Road and the part of the Victoria Bridge in the borough the tramways of the Corporation in those



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streets may be abandoned and discontinued and upon such abandonment and discontinuance the powers of the Thornaby Corporation and the Middlesbrough Corporation under section 31 of the Act of 1919 and section 63 of the Middlesbrough Corporation Act 1919 to run over and use the tramways of the Corporation shall cease and determine. A.D. 1930.  
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(2) Subject to the provisions of this Act the Corporation may take up and remove and use or dispose of the rails of any such tramways and the posts poles wires and other works and apparatus provided in connection therewith.

(3) As from the date upon which a service of omnibuses is provided by the Corporation in lieu of a tramway service in the streets referred to in subsection (1) of this section the revenue of the tramway undertaking of the Corporation shall (to such extent as the Corporation may from time to time by resolution determine) cease to be charged under any statutory enactment relating to that undertaking with expenses incurred by the Corporation upon or in connection with the maintenance and repair of the said streets but nothing in this section shall relieve the Corporation from any liability attaching to them in respect of such maintenance and repair.

(4) The provisions of section 28 (Cheap fares for labouring classes) and section 29 (Periodical revision of rates and charges) of the Act of 1919 shall apply to any service of omnibuses provided under the powers of this Act in substitution for a service of tramcars to the same extent as the said provisions applied to the tramways replaced by such service.

**29.** For the protection of the Durham County Council (in this section referred to as "the council") the following provisions shall (unless otherwise agreed in writing between the Corporation and the council) apply and have effect in relation to the abandonment of the tramways of the Corporation in High Street Norton Norton Road High Street Stockton and Bridge Road (in this section referred to as "the Stockton tramways") authorised by this Act (that is to say):— For protection of Durham County Council.

- (1) The Corporation shall abandon and discontinue the whole of the Stockton tramways prior to the expiration of six months after they shall



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have commenced to run a service of omnibuses along the streets mentioned in subsection (1) of the section of this Act of which the marginal note is "As to abandonment of tramways of Corporation" and shall give to the council not less than one month's previous notice in writing of their intention to abandon and discontinue the same :

- (2) The Corporation shall forthwith upon such abandonment and discontinuance take up and remove the Stockton tramways and all rails paving paving setts posts standards brackets cables wires works and apparatus forming part thereof or provided or used in connection therewith and shall comply in all respects (subject to the provisions of this section) with the provisions of section 28 of the Tramways Act 1870 with respect to the restoration of the portions of the roads in which such tramways are laid the clearing away of all surplus paving or metalling material or rubbish and with respect to fencing watching and lighting :
- (3) The restoration of the portions of the roads in which the Stockton tramways are laid shall be carried out in accordance with specifications and particulars to be previously submitted to the council and reasonably approved by them prior to the commencement of the work :
- (4) The Corporation shall include in the next detailed estimate of the cost of maintenance and repair and reasonable improvement of the roads in which the Stockton tramways are laid to be furnished to the council under section 33 of the Local Government Act 1929 after the Corporation have determined to abandon and discontinue the Stockton tramways the estimated cost of the restoration of the portions of the said roads in which such tramways are laid and the council shall be at liberty to deduct from the payment which may be determined to be due from them to the Corporation under the said section upon such estimate a sum calculated on the basis of five shillings and sixpence per superficial yard of the portions



of the said roads so to be restored which sum shall be taken to represent the cost of the restoration in respect of which the Corporation are liable under the said section 28 of the Tramways Act 1870 : A.D. 1930.  
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- (5) The obligations and liabilities of the Corporation under the Tramways Act 1870 in relation to the maintenance of the portions of the roads in which the Stockton tramways are laid shall continue until the Corporation shall have complied with their obligations under this section and under the provisions of section 28 of the Tramways Act 1870 referred to in subsection (2) of this section :
- (6) Any difference which may arise between the Corporation and the council with regard to any of the matters referred to in this section shall be settled by an engineer to be appointed in default of agreement on the application (after notice in writing to the other of them) of either the Corporation or the council by the Minister of Transport and subject as aforesaid the provisions of the Arbitration Act 1889 or of any statutory modification or re-enactment thereof shall apply to any such arbitration.

**30.** The following provisions shall apply and have effect unless otherwise agreed in writing between the Corporation and the Thornaby Corporation (that is to say) :—

For protection of  
Thornaby  
Corporation.

- (1) As from the passing of this Act the Corporation shall purchase and the Thornaby Corporation shall sell all the assets of the Thornaby Corporation in connection with the tramways of the Thornaby Corporation including the track the overhead electrical equipment cables cars and other assets (all of which are in this section referred to as "the Thornaby tramways") and also the share or interest of the Thornaby Corporation in—
- (a) the old generating station and hereditaments in connection therewith situate in Bridge Road Stockton-on-Tees ;



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(b) the machine tools plant miscellaneous stock loose plant tools and office equipment now the property of the Stockton and Thornaby Joint Tramway Committee; and

(c) the reserve fund established by the Corporation and the Thornaby Corporation jointly in respect of the Stockton and Thornaby joint tramways;

and thereupon all the powers rights duties and obligations of the Thornaby Corporation (whether statutory or otherwise) in connection with the said undertaking shall by virtue of this Act and without further assurance or other authority be transferred to and vested in the Corporation :

- (2) The consideration for the said sale and purchase shall be the payment by the Corporation to the Thornaby Corporation within six months from the date of the passing of this Act of the capital sum owing by the Thornaby Corporation in respect of the Thornaby tramways as it exists on the date of the passing of this Act (less an apportioned amount representing the appropriate sinking fund contribution from the date of the last preceding contribution to the date of the passing of this Act) together with interest on such sum as from the date of the passing of this Act to the date of payment at the same rate as may be paid by the Thornaby Corporation during that period :
- (3) As from the date of the passing of this Act the Corporation shall take over and accept full responsibility for and shall perform and observe all statutory and other provisions and requirements in relation to the Thornaby tramways the abandonment and discontinuance of such tramways and the restoration of the roads on which the tramways are laid :
- (4) Any difference which may arise between the Corporation and the Thornaby Corporation with regard to any of the matters referred to in subsections (1) (2) and (3) of this section shall be settled by an engineer to be appointed



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in default of agreement by the Minister of Transport on the application (after notice in writing to the other of them) of either the Corporation or the Thornaby Corporation and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference : A.D. 1930.  
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- (5) After the establishment of a service of omnibuses by the Corporation or by any party with whom the Corporation may enter into an agreement for the working user management and maintenance of any omnibus services on the portion of Route A mentioned in the section of this Act of which the marginal note is " Power to provide and run omnibuses " which lies within the borough of Thornaby-on-Tees or on any other route within the said borough whether under the powers of this or any other Act the Corporation or such other party shall at all times provide such a service of omnibuses as will adequately meet the requirements of the route at reasonable fares rates and charges The fares rates and charges in respect of any fare stage within the borough of Thornaby-on-Tees shall not exceed the fares rates and charges for a fare stage of similar length in the borough Any question arising under this subsection between the Corporation and the Thornaby Corporation shall be determined by the Minister of Transport on the application of either party and the said Minister shall have power to make such order thereon as he thinks fit.

**31.**—(1) (a) Subject to the provisions of the section of this Act of which the marginal note is " Provision " restrictive of abandonment of tramways of three Corpora- As to abandon-  
 " tions upon Route A and of running of omnibuses upon ment of  
 " that route " the Middlesbrough Corporation may provide tramways of  
 maintain and run omnibuses along Route A mentioned in Thornaby  
 the section of this Act of which the marginal note is and Mid-  
 " Power to provide and run omnibuses " and so soon as dlesbrough  
 the Corporation shall have commenced to run a service Corpora-  
 of omnibuses along the part of the Victoria Bridge and tions.  
 Mandale Road and Middlesbrough Road in the borough



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A.D. 1930. — of Thornaby-on-Tees and so soon as the Middlesbrough Corporation shall have commenced to run a service of omnibuses along Stockton Road Newport Road Corporation Road and North Ormesby Road in their borough the Corporation and the Middlesbrough Corporation may abandon and discontinue the tramways in those roads respectively.

(b) Upon the abandonment and discontinuance of the tramways in the borough of Thornaby on the Victoria Bridge and in Mandale Road and Middlesbrough Road the powers of the Corporation and the Middlesbrough Corporation under section 31 of the Act of 1919 section 63 of the Middlesbrough Corporation Act 1919 and section 42 of the Thornaby-on-Tees Corporation Tramways Order 1919 to run over and use the tramways of the Thornaby Corporation shall cease and determine and upon the abandonment and discontinuance of the tramways of the Middlesbrough Corporation in Stockton Road Newport Road Corporation Road and North Ormesby Road in the borough of Middlesbrough to the point of termination of the tramway in that road existing at the passing of the Middlesbrough Corporation Act 1919 and referred to in section 63 of that Act the powers of the Corporation and the Thornaby Corporation under the said section 31 of the Act of 1919 and section 63 of the Middlesbrough Corporation Act 1919 to run over and use the tramways of the Middlesbrough Corporation shall cease and determine.

(2) Subject to the provisions of this Act the Corporation and the Middlesbrough Corporation may take up and remove and use or dispose of the rails of any of the tramways in any of the said streets and the posts wires and other works and apparatus provided in connection therewith.

(3) As from the date on which the Corporation abandon and discontinue the tramways in the borough of Thornaby and the Middlesbrough Corporation abandon and discontinue the tramways in the streets in their borough referred to in subsection (1) of this section in pursuance of the foregoing provisions of this section they and the Thornaby Corporation shall respectively cease to be under any obligation to use the same or to run carriages thereon or (in the case of the Corporation) to maintain or



repair any part of the roadway in which the tramways of the Thornaby Corporation are situate and the Thornaby-on-Tees Corporation Tramways Order 1919 shall be repealed and in the case of the Middlesbrough Corporation the revenue of the tramway undertaking of that Corporation shall (to such extent as that Corporation may from time to time by resolution determine) cease to be charged under any statutory enactment relating to that undertaking with expenses incurred by that Corporation upon or in connection with the maintenance and repair of the said streets but nothing in this section shall relieve the Middlesbrough Corporation from any liability attaching to them in respect of such maintenance and repair.

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**32.** Notwithstanding anything contained in the sections of this Act of which the marginal notes are respectively "As to abandonment of tramways of Corporation" and "As to abandonment of tramways of Thornaby and Middlesbrough Corporations" none of the three Corporations shall—

Provision restrictive of abandonment of tramways of three Corporations upon Route A and of running of omnibuses upon that route.

- (a) abandon their tramways situate upon so much of Route A mentioned in the section of this Act of which the marginal note is "Power to provide and run omnibuses" as is situate within their respective boroughs; or
- (b) run omnibuses along so much of the said route as is situate outside their respective boroughs;

prior to the expiration of the period of two years from the passing of this Act except with the consent in writing of the other two of the three Corporations.

**33.** For the protection of the North Riding County Council (in this section referred to as "the council") the following provisions shall (unless otherwise agreed in writing between the Corporation and the council) apply and have effect in relation to the abandonment of the tramways of the Thornaby Corporation in Victoria Bridge Mandale Road and Middlesbrough Road (in this section referred to as "the Thornaby tramways") authorised by this Act (that is to say):—

For protection of North Riding County Council.

- (1) The Corporation shall abandon and discontinue the whole of the Thornaby tramways prior to the expiration of six months after they shall have commenced to run a service of omnibuses



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along the streets mentioned in subsection (1) (b) of the section of this Act of which the marginal note is "As to abandonment of tramways of Thornaby and Middlesbrough Corporations" and the Corporation shall give to the council not less than one month's previous notice in writing of their intention to abandon and discontinue the same :

- (2) The Corporation shall forthwith upon such abandonment and discontinuance take up and remove the Thornaby tramways and all rails posts standards brackets cables wires works and apparatus forming part thereof or provided or used in connection therewith and shall comply in all respects (subject to the provisions of this section) with the provisions of section 28 of the Tramways Act 1870 with respect to the restoration of the portions of the roads in which such tramways are laid the clearing away of all surplus paving or metalling material or rubbish and with respect to fencing watching and lighting :
- (3) The restoration of the portions of the roads in which the Thornaby tramways are laid shall be carried out in accordance with specifications and particulars to be previously submitted to the council and reasonably approved by them prior to the commencement of the work The council may if they think fit (within one month after the service on them of the notice referred to in subsection (1) of this section) give notice to the Corporation that they desire themselves to do the works necessary for the restoration of the road and the Corporation shall in lieu of carrying out the said works pay to the council in respect thereof a sum calculated on the basis of five shillings and sixpence per superficial yard of the portions of the said roads so to be restored which sum shall be taken to represent the cost of the restoration in respect of which the Corporation are liable under the said section 28 of the Tramways Act 1870 :
- (4) The obligations and liabilities of the Corporation under the Tramways Act 1870 in relation to the



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maintenance of the portions of the roads in which the Thornaby tramways are laid shall continue until the Corporation shall have complied with their obligations under this section and under the provisions of section 28 of the Tramways Act 1870 referred to in subsection (2) of this section : A.D. 1930.  
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- (5) Any difference which may arise between the Corporation and the council with regard to any of the matters referred to in this section shall be settled by an engineer to be appointed in default of agreement on the application (after notice in writing to the other of them) of the Corporation or the council by the Minister of Transport and subject as aforesaid the provisions of the Arbitration Act 1889 or of any statutory modification or re-enactment thereof shall apply to any such arbitration.

**34.**—(1) The Corporation and the Middlesbrough Corporation may enter into and carry into effect agreements with one another for the working user management and maintenance of all or any of the omnibus services which the contracting parties are empowered to provide subject to the provisions of the respective Acts under which such omnibus services are authorised. Working and other agreements.

(2) The said Corporations may also enter into and carry into effect agreements with one another for all or any of the following purposes (that is to say) :—

- (a) The working user management and maintenance of any omnibuses lands depots buildings sheds and property provided in connection with any such omnibus services as aforesaid by either of the contracting parties and the right to provide and use the same and to demand and take the fares and charges authorised in respect of such services ;
- (b) The supply by either of the contracting parties under and during the continuance of any such agreement under this section of omnibuses and conveniences in connection therewith necessary for the purposes of such agreement and the employment of officers and servants ;



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- (c) The interchange accommodation conveyance transmission and delivery of traffic arising on or coming from or destined for any omnibus service of the contracting parties ;
- (d) The payment collection and apportionment of the fares and charges and other receipts arising from any such omnibus service as aforesaid.

## PART V.

### STREETS BUILDINGS SEWERS AND DRAINS.

Exchange  
of parts of  
streets  
disused.

**35.**—(1) The Corporation may agree with the owner of any land in any street in the borough to give up land for the purpose of widening opening enlarging or otherwise improving such street or any other street in exchange for any part of any street which shall front other land belonging to such owner and shall be behind the general line of such street or which shall in the opinion of the Corporation be no longer required for public use or for approach to any property adjoining the same and for such other consideration (if any) as may be agreed and all public rights of way over any portion of any street so exchanged shall be extinguished.

(2) Notwithstanding any agreement under this section the Postmaster-General shall continue to have the same powers and rights in respect of any telegraphic line belonging to or used by him which remains in under upon over along or across the site of any part of a street exchanged for land as if the same had continued to be part of the street and if by reason or in consequence of any such agreement it becomes necessary to alter any such telegraphic line the enactments contained in section 7 of the Telegraph Act 1878 shall apply to the alteration as though the Corporation or the owner of the land (as the case may be) were “ undertakers ” within the meaning of the said Act.

(3) Notwithstanding any agreement under this section the Central Electricity Board shall continue to have the same powers and rights in respect of any electric lines and other works belonging to them which may have been placed in under upon over along or across the site of any part of a street exchanged for land as if the same had continued to be part of the street.



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(4) The Corporation shall not exercise any of the powers of this section with respect to any county road except with the previous consent in writing of the Durham County Council. A.D. 1930.  
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**36.** The Corporation may by notice in writing require the owner of any hoarding to maintain the same in good order and condition and if any paper or other material affixed thereto for advertising purposes becomes detached forthwith to remove and clear away such paper or other material and if any owner shall neglect or refuse to comply with any such notice the Corporation may carry out the requirements thereof and recover from the owner any expense incurred by them in so doing. As to repair of hoardings.

**37.**—(1) In the case of any building within the borough which may appear to the Corporation on the report of any duly qualified officer to be dangerous to the inmates or persons working therein the Corporation may order a complete external and internal inspection and examination of any such building to be made by a competent person and for that purpose such person may on giving not less than twenty-four hours' notice to the occupier of the building and on producing written authority from the town clerk at any hour of the day between nine o'clock in the morning and six o'clock in the afternoon with such other persons as he may deem necessary enter upon such building and examine and inspect the same. As to dangerous buildings.

(2) If upon such examination and inspection it shall appear necessary that any works should be executed or alterations made for the purpose of putting such premises into a safe and proper condition for the purposes for which the same are used the Corporation in respect of such building and the works to be carried out therein shall have and may exercise all or any of the powers vested in the Corporation with respect to dangerous structures.

**38.**—(1) Section 157 (Power to make byelaws respecting new buildings &c.) of the Public Health Act 1875 in its application to the borough shall be altered and construed as if the following sub-paragraphs were  
31 Extension of section 157 of Public Health Act 1875.



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A.D. 1930.      added immediately after the sub-paragraph numbered (4)  
—      in the said section :—

“(5) For requiring work to be done in connection with the alteration whether in use or structure of a building or part thereof for securing stability and the prevention of fire and for purposes of health :

(6) For securing the adequate lighting of buildings.”

(2) The said section 157 shall also in its application to the borough be read and have effect as if it empowered the Corporation to require by byelaws the deposit of plans and sections by persons intending to construct reconstruct or alter the course of any drain in connection with a building within the borough or which communicates or is intended or required to communicate with any public sewer within the borough.

Food  
storage  
accommodation.

**39.**—(1) Every dwelling-house erected within the borough after the passing of this Act shall be provided with sufficient and properly ventilated pantry or other food storage accommodation and any owner who shall occupy or allow to be occupied any such dwelling-house not so provided shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(2) (a) Every existing dwelling-house and every dwelling-house within the borough the erection of which was commenced before the passing of this Act shall where reasonably practicable be provided with sufficient and properly ventilated pantry or other food storage accommodation and any owner who shall occupy or allow to be occupied any such dwelling-house which can reasonably be so provided but which is not so provided after one month's notice from the Corporation requiring the same to be done shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(b) Any person aggrieved by any requirement of the Corporation under this subsection may appeal to a court of summary jurisdiction within seven days after the service of such notice provided he give twenty-four hours' written notice of such appeal and of the ground



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thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs. A.D. 1930.  
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(c) Notice of the right to appeal shall be endorsed on every requirement of the Corporation under this subsection.

(d) If the owner of the dwelling-house alleges that any occupier should bear or contribute to the expenses of complying with any requirement of the Corporation under this section he may apply to a court of summary jurisdiction and thereupon such court after giving the occupier an opportunity of being heard may make such order as appears to the court just and equitable under all the circumstances of the case.

**40.** Section 23 (Extension of 38 & 39 Vict. c. 55. s. 157) of the Public Health Acts Amendment Act 1890 in its application to the borough shall have effect as if the words "and floor area" had been inserted therein after the word "height" in subsection (1) of that section. Area of habitable rooms.

**41.—**(1) If it appears to the Corporation that two or more houses within the borough may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any part of the premises the Corporation may when the drains of such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Corporation if they so decide or by the owner or owners in such manner as the Corporation shall direct and the costs and expenses of such combined drain and the repair and maintenance thereof shall be apportioned between the owners of such houses in such manner as the Corporation shall determine and if such drain is constructed by the Corporation such costs and expenses may be recovered by the Corporation from such owners subject to a right of appeal under subsection (4) of this section. Combined drains.

(2) Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer.

(3) Provided that the Corporation shall not except by agreement with the owners exercise the powers conferred by this section in respect of any house for



A.D. 1930. — the drainage of which plans shall have been previously approved by them.

(4) Any person aggrieved by the amount of any costs and expenses proposed to be recovered by the Corporation under this section or the amount to be borne and paid by him may appeal to a court of summary jurisdiction provided that such appeal be made within twenty-eight days from the date of the service of notice by the Corporation intimating the amount payable or their apportionment thereof. On any such appeal the court may and is hereby empowered to make such order in the premises and on such terms and conditions as to the court may seem just. The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court may direct.

As to defective drains &c.

**42.—**(1) In any case in which it appears to the medical officer or sanitary inspector that any drain watercloset or soil pipe within the borough is stopped up or otherwise defective the medical officer or sanitary inspector shall give notice to the owner or occupier of the premises to remedy such defect and if such notice is not complied with within twenty-four hours from the service thereof the Corporation may carry out the work necessary to remedy such defect and may subject as hereinafter provided recover the expenses incurred in that behalf from such owner or occupier in a summary manner as a civil debt.

(2) Upon any proceedings under this section the court may inquire whether any requirement contained in any notice given under this section or work done by the Corporation was reasonable and whether the expenses incurred by the Corporation in doing such work or any part thereof ought to be borne wholly or in part by the person to whom notice was given and the court may make such order concerning such expenses or their apportionment as appears to the court to be just and equitable in the circumstances of the case.

Improper construction or repair of watercloset or drain.

**43.—**(1) If a watercloset drain or soil pipe within the borough is so constructed or repaired as to be a nuisance or injurious or dangerous to health the person who undertook or executed such construction or repair shall unless he shows that such nuisance or injury or danger to health could not have been avoided by the



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exercise of reasonable care be liable to a penalty not exceeding twenty pounds. A.D. 1930.

(2) Provided that where a person is charged with an offence under this section he shall be entitled upon information duly laid by him to have any other person being his agent servant or workman whom he charges as the actual offender brought before the court at the time appointed for hearing the charge and if the person charged proves to the satisfaction of the court that he has used due diligence to prevent the commission of the offence and that the said other person committed the offence without his knowledge consent or connivance he shall be exempt from any penalty and the said other person may be summarily convicted of the offence.

44.—(1) The Corporation may by notice in writing require the owner or occupier of any dwelling-house warehouse or shop within the borough to provide portable covered galvanised iron dustbins in lieu of ashpits or ashtubs or other receptacles for refuse and such dustbins shall be of such size and construction as may be approved by the Corporation. Regulation dustbins.

(2) Every owner or occupier having provided any dustbin pursuant to this section shall maintain the same in good order and condition.

(3) Provided that the foregoing provisions of this section shall not apply to any covered ashtubs or other receptacles for refuse in use at the passing of this Act so long as the same are of suitable material size and construction and in proper order and condition.

(4) From and after the passing of this Act it shall not be lawful for any person to use any dustbin or ashtub for any purpose other than the deposit of dust ashes or other house refuse (not being of a liquid or partly liquid character) intended for removal by or on behalf of the Corporation.

(5) Any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Corporation under subsection (1) of this section or who fails to comply with his obligation under subsection (2) of this section as the case may be shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings and any person contravening the provisions of subsection (4)



[Ch. clxxii.] *Stockton-on-Tees* [20 & 21 GEO. 5.]  
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A.D. 1930. — of this section shall be liable to a penalty not exceeding ten shillings and to a daily penalty not exceeding ten shillings.

(6) Nothing in this section shall apply to any warehouse belonging to a railway company from which the Corporation do not remove the refuse.

PART VI.

FINANCIAL PROVISIONS.

Power to borrow.

45.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment of the said sums and the payment of interest thereon the Corporation may mortgage or charge the revenues of the Corporation and they shall pay off all moneys so borrowed within the respective periods (each of which shall be the prescribed period for the purposes of this Act and the enactments incorporated therewith or applied thereby) mentioned in the third column of the said table (namely) :—

| 1                                                                                                         | 2                  | 3                                                      |
|-----------------------------------------------------------------------------------------------------------|--------------------|--------------------------------------------------------|
| Purpose.                                                                                                  | Amount.            | Period for repayment.                                  |
| (a) For and in connection with the purchase of lands.                                                     | £ 500              | Sixty years from the date or dates of borrowing.       |
| (b) For and in connection with the provision of omnibuses.                                                | 67,558             | Eight years from the date or dates of borrowing.       |
| (c) For and in connection with the removal of tramways and the reconstruction and reinstatement of roads. | 25,000             | Twenty-five years from the date or dates of borrowing. |
| (d) For the payment of the costs charges and expenses of this Act.                                        | The sum requisite. | Five years from the passing of this Act.               |

(2) (a) The Corporation may also with the consent of the Minister of Transport borrow such further money as may be necessary for or in connection with any purposes of Part IV (Omnibuses and tramways) of this Act and with the consent of the Minister of Health may borrow such further money as may be necessary for any of the other purposes of this Act.



(b) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Minister with whose consent such money is borrowed and that period shall be the prescribed period for the purposes of this Act and the enactments incorporated therewith or applied thereby. A.D. 1930.

(c) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Corporation may mortgage or charge the revenues of the Corporation.

**46.** The following provisions of the Act of 1919 shall with the necessary modifications extend and apply to the exercise of the powers of this Act in the same manner as if those sections had been re-enacted in this Act (namely) :— Application of provisions of Act of 1919.

- Section 70 (Mode of raising money);
- Section 71 (Provisions of Act of 1869 as to mortgages to apply);
- Section 72 (Mode of payment off of money borrowed);
- Section 73 (Sinking fund) (Provided that the application of the said section 73 shall be subject to the provisions of the *Stockton-on-Tees Corporation Act 1925*);
- Section 74 (Appointment of receiver);
- Section 75 (Application of money borrowed);
- Section 82 (Corporation not to regard trusts);
- Section 84 (Expenses of execution of Act);
- Section 85 (Audit of accounts).

- 47.**—(1) The Corporation shall have power— Power to re-borrow.
- (a) to borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended forthwith to be repaid; or
  - (b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.



A.D. 1930.

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(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) by instalments or annual payments; or

(b) by means of a sinking fund; or

(c) out of moneys derived from the sale of land; or

(d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Lands fund.

**48.** The Corporation may if they think fit establish a fund to be called "the lands fund" which shall form part of the general rate fund to provide for purchasing or acquiring or taking on lease and holding any lands and buildings which in their opinion it is desirable at any time to acquire for or connected with the purposes of any of their undertakings powers or duties or for the benefit improvement or development of the borough (other than purposes of the tramways undertaking the gas undertaking the electricity undertaking the markets undertaking and the quay undertaking of the Corporation) and such fund shall be formed by annually appropriating thereto out of the general rate such an amount as the Corporation may from time to time determine not exceeding the amount which would be produced by a rate of two pence in the pound calculated in manner provided by rules from time to time made by the Minister of Health under the Rating and Valuation Act 1925 Provided that when the fund aforesaid shall amount to the sum of ten thousand pounds the Corporation shall discontinue such annual payments but



if the fund is at any time reduced below the sum of ten thousand pounds the Corporation may recommence and continue the annual payment until the fund be restored to the sum of ten thousand pounds. A.D. 1930.

**49.**—(1) Subject to the provisions of subsection (2) of this section and notwithstanding anything contained in any previous enactment all money received by the Corporation on account of the revenue of their tramways undertaking their quay undertaking their electricity undertaking and their markets undertaking including the income arising from the investment of any reserve fund shall be carried to and shall form part of the revenue of the general rate fund and all payments and expenses made and incurred in respect of any of those undertakings shall be paid out of that fund. Application of revenue and payment of expenses of undertakings.

(2) Nothing contained in this section shall be deemed to authorise the Corporation to apply or dispose of the surplus revenue of the electricity undertaking otherwise than in accordance with the provisions of section 43 of and the Fifth Schedule to the Electricity (Supply) Act 1926 or to increase the reserve fund of the electricity undertaking beyond the limit prescribed by section 7 of the schedule to the Electric Lighting (Clauses) Act 1899.

**50.**—(1) As from the first day of April nineteen hundred and thirty-one the Corporation shall notwithstanding the provisions of any Act or Order to the contrary keep their accounts so as to distinguish capital from revenue and as to revenue so as to show under a separate heading or division in respect of each of the undertakings referred to in the section of this Act of which the marginal note is "Application of revenue and payment of expenses of undertakings" (each of which is in this section separately referred to as "the undertaking") on the one side all receipts in respect of the undertaking including the income from any reserve funds authorised in connection with such undertaking and on the other side all payments and expenses in respect of the undertaking such payments and expenses being divided so as also to show in each case the amounts expended in respect of each of the following purposes (that is to say):— Accounts.

(a) The working and establishment expenses and cost of maintenance of the undertaking;



[Ch. clxxii.] *Stockton-on-Tees* [20 & 21 GEO. 5.]  
*Corporation (General Powers) Act, 1930.*

A.D. 1930.  
—

- (b) The interest on moneys borrowed by the Corporation for the purposes of or connected with the undertaking;
- (c) The requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking;
- (d) All other expenses (if any) of the undertaking properly chargeable to revenue;
- (e) The amount (if any) paid to any reserve fund which the Corporation are from time to time authorised to maintain.

(2) The Corporation shall show in their accounts relating to any undertaking all items (including receipts and payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking.

(3) In all cases in which the Corporation keep separate accounts for separate purposes they shall so far as reasonably practicable apportion between those accounts or carry to any of them any receipts credits payments and liabilities which from time to time ought to be so apportioned or carried.

(4) The following provisions are hereby repealed:—

The Stockton-on-Tees (Quay and Markets) Act 1878—

Section 36 (Application of revenue).

The Stockton-on-Tees Electric Lighting Order 1890—

Section 52 (Application of revenue).

The Act of 1919—

Section 76 (Application of revenue of tramway undertaking);

Section 87 (Amendment of section 36 of Stockton-on-Tees (Quay and Markets) Act 1878).

Reserve  
funds.

**51.**—(1) The Corporation may (if they think fit) provide a reserve fund in respect of each of the undertakings referred to in the section of this Act of which the marginal note is “Application of revenue and payment of expenses of undertakings.”



[20 & 21 GEO. 5.] *Stockton-on-Tees* [Ch. clxxii.]  
*Corporation (General Powers) Act, 1930.*

(2) The Corporation may set aside in any year for the purpose of such reserve fund such an amount as they may think reasonable and may invest the same and the resulting income thereof in statutory securities and may accumulate the same at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation in respect of the undertaking. A.D. 1930.  
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(3) Any reserve fund which has been formed for the purposes of any of the said undertakings and which is in existence at the passing of this Act shall be deemed to have been formed under this section.

(4) Any reserve fund formed under this section shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the undertaking in respect of which it is formed or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of that undertaking or for payment of the cost of renewing improving or extending any part of the works forming part thereof or otherwise for the benefit of that undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(5) Resort may be had to a reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

(6) Any provision of any enactment now in force relating to the borough with reference to the provision of a reserve fund in respect of any of the undertakings referred to in the section of this Act the marginal note whereof is "Application of revenue and payment of expenses of undertakings" is hereby repealed.

**52.**—(1) The Corporation may if they think fit in cases not within the Workmen's Compensation Act 1906 or the Teachers (Superannuation) Acts 1918 to 1925 or any other Act for the time being in force relating to the superannuation of teachers and not entitled to benefits under a scheme established under the Local Government and other Officers' Superannuation Act 1922 grant a weekly or other periodical allowance (not Power to grant allowances or gratuities in certain cases.



[Ch. clxxii.] *Stockton-on-Tees* [20 & 21 GEO. 5.]  
*Corporation (General Powers) Act, 1930.*

A.D. 1930. — exceeding one-half of his salary or wages) or in lieu thereof a gratuity of any sum (not exceeding two years' pay) to any of the Corporation's officers or servants who may be disabled or injured in the Corporation's service or may become incapacitated through age sickness or other infirmity or to the widow or family of any such officer or servant who may die in the Corporation's service.

(2) Every such allowance or gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such officer or servant would have been charged or been paid if he had continued in his office or service.

(3) In and for the purposes of this section the expression "officers or servants" shall include any teacher who is not entitled to a gratuity under the Teachers (Superannuation) Acts 1918 to 1925 or any Act amending the same and who at the date of the passing of this Act is or shall thereafter be permanently and exclusively employed by the Corporation as the local education authority for the borough or permanently and exclusively employed in any public elementary school in the borough whether provided by the Corporation as the local education authority or not so provided.

(4) The Corporation shall not include in any detailed estimates furnished to the Durham County Council under section 33 of the Local Government Act 1929 or in any subsequent claim in respect thereof any sum in respect of any allowance or gratuity granted by them to any person whose salary wages or emoluments are in whole or in part charged upon county funds or are paid out of moneys applicable to the maintenance repair or improvement of county roads.

## PART VII.

### MISCELLANEOUS PROVISIONS.

Noise  
nuisance.

**53.**—(1) A noise nuisance shall be liable to be dealt with in accordance with the provisions relating to nuisances of the Public Health Act 1875 Provided that no complaint shall be made to a justice under section 105 of the said Act unless it is signed by not less than three householders or occupiers of premises within hearing of the noise nuisance complained of.



[20 & 21 GEO. 5.] *Stockton-on-Tees* [Ch. clxxii.]  
*Corporation (General Powers) Act, 1930.*

(2) For the purpose of this section a noise nuisance shall be deemed to exist where any person makes or continues or causes to be made or continued any excessive or unreasonable or unnecessary noise and where such noise (a) is injurious or dangerous to health and (b) is capable of being prevented or mitigated having due regard to all the circumstances of the case : A.D. 1930.  
 —

Provided that if the noise is occasioned in the course of any trade business or occupation it shall be a good defence that the best practicable means of preventing or mitigating it having regard to the cost have been adopted.

(3) Nothing contained in this section shall apply to a railway company or their servants exercising statutory powers.

**54.** The powers of the Corporation under section 21 of the Electric Lighting Act 1882 of cutting off supplies of electricity and cutting or disconnecting electric lines or works and of recovering the expenses incurred in such cutting off shall be exerciseable in any case in which any part of any charge or sum due to the Corporation for electricity supplied by them or in respect of any apparatus or fitting let on hire by the Corporation or supplied by them on hire purchase terms which the Corporation are under obligation to maintain remains unpaid after the expiration of such period from the date of demand thereof as the Corporation may from time to time determine. Power to cut off supplies where charges &c. not wholly paid.

**55.** In any case in which the Corporation lawfully cut off a supply of electricity or gas by reason of any act omission or default of a consumer or any other person they may recover from the person to whom the supply was theretofore furnished or from any other person on account of whose act omission or default such supply was cut off the reasonable expenses incurred by them in such cutting off in like manner as charges for electricity or gas are recoverable by the Corporation. Power to recover cost of cutting off supplies.

**56.** Notwithstanding anything in this Act contained the following provisions for the protection of the London and North Eastern Railway Company (in this section called "the company") shall unless otherwise agreed For protection of London and North Eastern



[Ch. clxxii.] *Stockton-on-Tees* [20 & 21 GEO. 5.]  
*Corporation (General Powers) Act, 1930.*

A.D. 1930. between the Corporation and the company apply and  
have effect (that is to say):—

Railway  
Company.

(1) All works carried out under the powers of the sections of this Act of which the marginal notes are “As to abandonment of tramways of Corporation” and “As to abandonment of tramways of Thornaby and Middlesbrough Corporations” which affect the property of the company shall be so carried out in accordance with plans sections and specifications to be previously submitted to and approved by the engineer of the company and under the superintendence (if such superintendence shall be given) and to the reasonable satisfaction of the said engineer :

(2) Nothing in Part V of this Act except the sections whereof the marginal notes are “Exchange of parts of streets disused” and “As to repair of hoardings” shall extend or apply to any building (not being a dwelling-house) railway or work constructed by or belonging to or which may hereafter be constructed by or belong to the company in the exercise of their statutory powers or to any land held or acquired or which may hereafter be held or acquired by the company with the authority of Parliament so long as any such building railway work or land is used or held by the company primarily for railway purposes.

Expenses  
may be  
declared  
private  
improve-  
ment ex-  
penses.

**57.** The Corporation may declare any expenses incurred by them under the provisions of this Act which are recoverable from the owner or owners of any premises to be private improvement expenses and thenceforth those expenses may be recovered and shall be charged upon the premises in respect of which they were incurred in accordance with the provisions of section 257 of the Public Health Act 1875.

In executing  
works for  
owner Cor-  
poration  
liable for  
negligence  
only.

**58.** Whenever the Corporation the surveyor or the sanitary inspector under any enactment or byelaw for the time being in force within the borough execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other



[20 & 21 GEO. 5.] *Stockton-on-Tees* [Ch. clxxii.]  
*Corporation (General Powers) Act, 1930.*

person required to do such work act or thing the Corporation shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Corporation or the surveyor or the sanitary inspector or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Corporation in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

A.D. 1930.  
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**59.** The provisions of section 102 (Power of entry of local authority) and section 103 (Penalty for disobedience of order) of the Public Health Act 1875 shall extend and apply to the purposes of Part V (Streets buildings sewers and drains) of this Act as if those purposes had been mentioned in the said section 102.

Power to enter premises.

**60.** The provisions of sections 182 to 185 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to byelaws authorised to be made by the Corporation under the powers of this Act other than byelaws made under Part IV (Omnibuses and tramways) of this Act.

General provisions as to bye-laws.

**61.** Where under this Act or under any general or local Act for the time being in force in the borough the Corporation give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

Breach of conditions of consent of Corporation.

**62.** All consents given by the Corporation under the provisions of this Act or of any local Act order byelaw or regulation for the time being in force within the borough shall be given in writing and unless otherwise prescribed shall be given under the hand of the town clerk or other duly authorised officer of the Corporation.

Consents of Corporation to be in writing.



[Ch. clxxii.] *Stockton-on-Tees* [20 & 21 GEO. 5.]  
*Corporation (General Powers) Act, 1930.*

A.D. 1930.

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Penalty  
on occupiers  
refusing  
execution  
of Act.

**63.** If the occupier of any house or part of a house or premises shall prevent the owner thereof from carrying into effect any requirement of the Corporation under Part V (Streets buildings sewers and drains) of this Act or under any byelaw made thereunder then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Corporation to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding forty shillings and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such works.

Apportion-  
ment of  
expenses in  
case of  
joint  
owners.

**64.** Where under the provisions of this Act or any local Act in force in the borough the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under those Acts or any of them are recoverable by the Corporation from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

As to  
appeals.

**65.** Any person aggrieved by any order judgment determination or requirement or the withholding of any certificate licence consent or approval of or by the Corporation or of or by any officer of the Corporation under the provisions of Part V (Streets buildings sewers and drains) of this Act or by any order made by a court of summary jurisdiction under the provisions of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order made by a court of summary jurisdiction the Corporation may in like manner appeal.

Several  
sums in one  
summons.

**66.** Where the payment of more than one sum by any person is due under any Act or Order from time to time in force within the borough any summons or warrant



[20 & 21 GEO. 5.] *Stockton-on-Tees* [Ch. clxxii.]  
*Corporation (General Powers) Act, 1930.*

issued for the purposes of any such Act or Order in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him. A.D. 1930. —

**67.** Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act. Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence. Saving for indictments &c.

**68.** The following sections of the Act of 1889 and the following further sections of the Act of 1919 shall with any necessary modifications extend and apply to the exercise of the powers of this Act in the same manner as if those sections had been re-enacted in this Act (namely) :— Application of provisions of Act of 1889 and further provisions of Act of 1919.

The Act of 1889—

- Section 239 (Form and service of notices by Corporation);
- Section 244 (Damages and charges in case of dispute to be settled by justices);
- Section 245 (Compensation how to be determined);
- Section 249 (Penalties to be paid over to the treasurer).

The Act of 1919—

- Section 89 (Evidence of appointments authority &c.);
- Section 90 (Application of Arbitration Act 1889);
- Section 91 (Recovery of fines and expenses);
- Section 92 (Recovery of demands in county court);
- Section 93 (Informations by whom to be laid);
- Section 94 (Powers of Act cumulative);
- Section 97 (Judges not disqualified).

**69.** In respect of the exercise of any powers or duties conferred on the Minister of Transport or the giving by him of any consents under this Act or any existing Inquiries by Minister of Transport.



[Ch. clxxii.] *Stockton-on-Tees* [20 & 21 GEO. 5.]  
*Corporation (General Powers) Act, 1930.*

A.D. 1930. — Act or Order of the Corporation the provisions of Part I of the Board of Trade Arbitrations &c. Act 1874 shall apply as if the Minister of Transport were referred to therein in lieu of the Board of Trade and as if in section 4 of that Act the words “under the seal of the Minister of Transport” were substituted for the words “by writing “under the hand of the President or of one of the “secretaries of the Board.”

Inquiries by  
Minister of  
Health.

**70.**—(1) The Minister of Health may direct any inquiries to be held by his inspectors which he may deem necessary in regard to the exercise of any powers conferred upon him or the giving of any consents under this Act and the inspectors of the Minister of Health shall for the purposes of any such inquiry have all such powers as they may have for the purpose of inquiries directed by that Minister under the Public Health Act 1875.

(2) The Corporation shall pay to the Minister of Health any expenses incurred by that Minister in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Minister not exceeding five guineas a day for the services of such inspector.

Saving for  
rights of  
Conservancy  
Commis-  
sioners.

**71.** Nothing in this Act shall prejudicially affect any powers rights or authorities vested in or exercised by the Tees Conservancy Commissioners.

Crown  
rights.

**72.** Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Costs of  
Act.

**73.** All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund and general rate or out of moneys to be borrowed under this Act for that purpose.

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